

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

Appellate No. SYN-CA4-26-CV-4103 · City Rule 8 Stay Motion

Filed February 2, 2026

Appellant City of Norvale moves under Federal Rule of Appellate Procedure 8(a)(2) and Local Rule 8 for a stay of the January 23 preliminary injunction during this interlocutory appeal. The City sought the same relief first from the district court. Its January 26 motion appears at ECF 18, the Guild's opposition at ECF 19, the City's reply at ECF 20, and the January 28 denial at ECF 21. Copies of those papers, the injunction, the notice of appeal, and the relevant evidentiary materials accompany this motion.

District-first practice is therefore satisfied, not excused. The court below considered the requested suspension on the existing record and concluded that the City had not shown a strong likelihood of success, irreparable municipal injury, or equities warranting restoration of the challenged requirements. This motion states those reasons as Rule 8(a)(2)(A)(ii) requires. It does not rely on impracticability or ask this Court to become the first tribunal to assess interim administration.

Under *Nken v. Holder*, 556 U.S. 418, 433–35 (2009), the Court considers a strong showing of likely success, irreparable injury to the applicant, substantial injury to other parties, and the public interest. The first two considerations are most critical. The City requests expedited review before the Guild's February 14 fair, but recognizes that urgency does not replace its burden.

Order Under Review and Procedural Posture

The district court preliminarily restrained enforcement of Ordinance N-2025-18 against the Guild's six announced 2026 fairs at Cedar Commons. The ordinance requires an application forty-five days before each recurring event, identification of each paid speaker with a short topic and time, a \$240 base fee and \$45 per paid presenter, and written reasons for a condition or denial based on documented crowd, traffic, or municipal-resource risks. Ordinary nonspeaking vendors do not trigger its added provisions.

The court treated the ordinance as content neutral and found no viewpoint discrimination in enactment or pilot administration. It nevertheless predicted that the paid-speaker trigger, cumulative fee, early roster commitment, and uncertain amendment process burdened the Guild's literary programs more broadly than the City's demonstrated operational interests justified. The order preserved authority over reservations, capacity, traffic, emergency access, sanitation, layout, competing uses, and materially changed event conditions.

The City appealed only preliminary relief under 28 U.S.C. § 1292(a)(1). The verified complaint remains pending, discovery has not produced a final merits record, and no permanent injunction or final judgment exists. A stay would maintain or adjust the governing rules during review; it would not decide the First Amendment claims. Filing the notice did not suspend the injunction automatically.

The City accepts that the Guild's history includes no violence, two minor medical responses, and ordinary congestion. It disputes the legal and operational inferences drawn from those facts, not their basic description. This Court can preserve a safe interim arrangement without resolving ultimate liability.

Likelihood of Success on the Tailoring Question

The City has a substantial prospect of showing that the district court demanded a closer fit than a content-neutral public-space regulation requires at the preliminary stage. A scheduled compensated appearance is an objective indicator of a program arranged and controlled by the organizer, as distinguished from incidental conversation at a vendor table. Presentation names, short topics, times, and durations let staff compare simultaneous uses, predict transitions toward signing areas, and assign limited personnel. None asks officials to approve an idea.

The enactment record addresses a constrained downtown site bordered by transit stops, a loading lane, a crosswalk, and an emergency entrance. Staff considered audience concentration, unloading delay, sanitation, and conflicting reservations. Written reasons and identified evidence constrain conditions. Listener hostility and disagreement with a lawful message are expressly forbidden grounds. The two pilot permits were administered through physical adjustments without ideological inquiry.

The district court cited alternatives such as attendance thresholds, direct requests for format information, focused update duties, and site-specific conditions. Those options may be sensible policy. Their availability does not establish on a preliminary record that the enacted method is constitutionally excessive, particularly when no complete Guild application has been denied because of a speaker change. Narrow tailoring does not require adoption of the least restrictive imaginable administration.

The City does not contend that payment removes First Amendment protection. Its argument is that compensation identifies a reliably scheduled feature for uniform advance review. Whether that choice is sufficiently tailored presents a serious appellate issue supporting preservation of the municipal framework during expedited review.

Fees, Disclosure, and Amendments

The \$240 base amount supports intake, routing, site coordination, and preparation of a written decision for each date. The additional \$45 addresses review of an announced presentation and expected audience transition. Staff time varies, but the current record does not show that receipts finance unrelated programs or that officials adjust charges according to popularity. A six-speaker event costs \$510; the City acknowledges that amount matters to a small nonprofit while disputing that significance alone proves an unconstitutional charge.

The requested topic may be stated generally, such as “novelist reading and questions.” The form disclaims any demand for a script, ideology, political affiliation, or viewpoint. A name helps distinguish an actual planned engagement from an unconfirmed concept and permits organizers and staff to discuss a substitution accurately. The City does not defend evaluating literary merit or anticipated audience disagreement.

Late changes are reviewable even though approval is not guaranteed. A replacement at the same time and place can still alter expected attendance, equipment, format, or traffic. Conversely, many substitutions can be accepted without revising the physical plan. The ordinance directs a written response based on available operational information. The lack of a categorical promise is not equivalent to a power to censor.

The City offered the district court a three-business-day response requirement for February amendments and renews that commitment as a condition of interim relief. It will accept concise descriptions and distinguish speaker-only changes from alterations with documented operational consequences. That enforceable arrangement addresses timing without deciding whether the ordinance ultimately survives review.

Rule 65(d) Presents an Independent Appellate Issue

The operative paragraph says the City and persons acting with it are enjoined from enforcing the Paid-Speaker Permit Ordinance against the Guild's announced fairs. It then states that neutral rules governing reservations, capacity, traffic, emergency access, sanitation, layout, competing uses, and material changes remain available. The accompanying opinion further says that officials may request presentation time, format, location, equipment, and reasonably expected attendance.

That explanation gives context but leaves the officials subject to the order without a sufficiently definite list of restrained acts. The combined enactment contains the base charge, speaker increment, schedule fields, change process, written-reason requirement, risk criteria, recordkeeping, and neutrality safeguards. A blanket restraint on “enforcing” the ordinance can be read to disable beneficial provisions even as the opinion permits overlapping inquiries under unnamed general authority.

Federal Rule of Civil Procedure 65(d) requires an injunction to state its terms specifically and describe in reasonable detail the conduct restrained. Staff should not have to determine whether asking an author's name is forbidden while asking expected attendance is permitted, whether a written condition belongs to the ordinance or an independent park rule, or whether a late format change may be reviewed without risking contempt.

The City has at least a strong likelihood of obtaining corrective relief on specificity. A reviewing court can require a more exact operative command even if it affirms some entitlement to protection. That issue supports a stay or a limited suspension while precise terms are settled.

Rule 65(c) Security Was Not Addressed

The January 23 order took effect immediately but did not set a security amount or explain why no security was required. Rule 65(c) provides for security in an amount the court considers proper to cover costs and damages sustained if a party is found to have been wrongfully enjoined. The City raised that omission in its district stay papers. The January 28 order preserved the question without modifying or supplementing the original injunction.

The Guild argued below that no quantifiable compensable loss had been shown and that any bond should be nominal. That may bear on amount; it does not replace an express exercise of discretion. The City identified administrative work, foregone scheduled charges, and the difficulty of restoring an event-planning period after a fair occurs. It does not ask this Court to impose a punitive bond or to treat security as a device for suppressing speech.

An appellate correction need not extinguish the Guild's interim protection. The Court could remand for a supported security determination while maintaining a carefully specified restraint. But the unaddressed requirement adds to the City's likelihood of obtaining material relief from the order as entered. It also counsels against leaving an indefinite injunction in force without clarification during a sequence of six events.

If the Court declines a full stay, the City asks that any interim order expressly reserve the bond issue and protect conduct undertaken under the presently controlling injunction from retroactive fee liability. Such precision would secure both parties while the appeal proceeds.

Irreparable Municipal and Operational Injury

Without a stay, the City must administer an approaching recurring event under an uncertain division between the named ordinance and preserved general powers. Staffing, transit interaction, loading control, and emergency access must be arranged before February 14. Once that planning interval passes, a later appellate decision cannot recreate the opportunity to allocate personnel or reconcile a conflict at the time decisions were required.

The injury is not a prediction of violence. The City relies on its prospective responsibility for public property used simultaneously by fair attendees, pedestrians, transit riders, vendors, and nearby businesses. Peaceful history informs the assessment but does not eliminate the need for consistent advance information. Even a routine bottleneck matters when it blocks a boarding area or service entrance.

Ambiguity imposes a separate institutional cost. An employee may omit a lawful inquiry for fear that its origin in the ordinance violates the injunction. Another may request the same information under a general park form, producing inconsistent treatment and a contempt dispute. Written reasons cannot cure the loss if staff was unsure what it could evaluate in the first place.

Foregone fees are not the City's principal claim, and the City recognizes that money alone rarely establishes irreparable injury. The unrecoverable component is displaced administration during a live event calendar. The proposed conditions—rapid decisions, neutral descriptions, documented findings, and preserved judicial access—would reduce that injury while preventing message-based action.

Harm to the Guild and the Equitable Balance

The City does not minimize the Guild's asserted expressive injury. Author invitations, travel, advertising, honoraria, and vendor commitments are time sensitive. An appearance lost in February cannot necessarily be recreated in April. Repeated assessments may influence small booksellers' participation, and an uncertain amendment process can discourage a late invitation even without a formal denial. Those interests deserve enforceable protection.

They do not require continuation of the order in its current form. The City proposes to decide a complete late-change request within three business days, accept a short neutral topic, state any operational consequence in writing, and refrain from considering viewpoint. A speaker substitution that leaves time, place, format, equipment, and expected attendance materially unchanged would not be rejected merely because it arrived after the original filing point.

For full interim relief, the City asks to administer the enacted schedule, including fees, subject to those safeguards. As a narrower alternative, it accepts suspension of the \$45 speaker increment while retaining the identity, time, format, and brief-description fields needed for review. It will not seek retroactive recovery for presentations made in compliance with a governing court order.

This alternative answers the most immediate economic concern while preventing an informational gap. The Guild would continue its program and retain a prompt path to challenge a concrete condition. The City would maintain a stable process rather than improvising under a broad restraint. On an expedited appeal, that limited and reviewable arrangement offers the sounder balance.

Public Interest and Requested Interim Structure

The public interest embraces both constitutional expression and safe, predictable access to Cedar Commons. Readers benefit from free author programs. Transit users, pedestrians, nearby businesses, and people requiring emergency access benefit from advance coordination. Neither interest warrants assumptions about viewpoint, and neither is served by an operative order that leaves the boundary of municipal authority uncertain.

The City requests an order staying the January 23 injunction through disposition of this appeal. During that period, the City would apply Ordinance N-2025-18 subject to a three-business-day response for timely amendment requests, a prohibition on ideological detail, written event-specific reasons, and immediate access to judicial relief for a disputed condition. The City further requests accelerated consideration because the first fair occurs February 14.

Alternatively, the Court should partially stay the injunction to permit collection and use of speaker names, short topics, times, formats, equipment, and expected-audience information, while leaving the per-speaker charge suspended. The partial order should confirm that documented safety conditions may be imposed and that a speaker-only substitution cannot be rejected without a stated operational basis. This proposal does not ask for a merits holding.

The existing record is adequate for interim decision. It includes the ordinance and administrative history, declarations from both sides, site materials, stipulated facts and alternatives, the January 19 transcript, the injunction, and the complete district stay sequence. No new factual assertion is necessary to evaluate the requested temporary structure.

Conclusion and Compliance with Local Rule 8

The Court should grant a stay pending appeal or the narrower partial relief described above. The City has shown a substantial likelihood of appellate correction concerning tailoring, specificity, and security; operational injury that cannot be repaired after the recurring dates; safeguards against the Guild's time-sensitive harm; and a public interest in clear protection for both park access and literary expression. At minimum, a short administrative stay would permit orderly consideration without suggesting a final view.

Local Rule 8 materials accompany the motion: the City's January 26 district application, the Guild's January 27 opposition, the City's January 28 reply, and the district court's January 28 reasons for denial. The City also supplies the January 23 opinion and operative order, the January 29 notice of appeal, pertinent portions of the hearing transcript and stipulated record, and its previously filed disclosure. The motion identifies opposing counsel's position and requests expedited assignment under the procedures referenced by the local rule.

The City certifies that counsel notified the Guild before filing and that the Guild opposes a stay. Electronic service was completed on February 2, 2026. The City will preserve permit communications and comply with the injunction unless this Court grants relief. It asks that any order specify its duration and the acts permitted or restrained.

Respectfully submitted by Municipal Appellate Counsel for the City of Norvale on February 2, 2026. This motion seeks only interim relief while the interlocutory appeal is pending and does not request adjudication of the unresolved complaint.